

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Judge Gordon P. Gallagher

Civil Action No. 21-cv-01748-GPG-MEH

JASON D. YEAGER,

Plaintiff,

v.

ALLSTATE FIRE AND CASUALTY INSURANCE COMPANY,

Defendant.

SPECIAL VERDICT FORM

We, the jury, present our Answers to Questions submitted by the Court, to which we have all agreed:

SECTION I. UNREASONABLE DELAY OF PAYMENT OF BENEFITS

1. Has Plaintiff Yeager proven by a preponderance of the evidence that Defendant Allstate delayed payment of uninsured motorist benefits to Plaintiff Yeager and that such delay was without a reasonable basis? (Yes or No)

ANSWER: Yes

If your answer to the above question is "no," then your verdict is in favor of Defendant Allstate on Plaintiff Yeager's claims in this Section I and in Section II below, and your foreperson and all other jurors shall sign this Special Verdict Form on the lines provided, without answering the remaining questions in this Section I or in the following Section II. However, if your answer to question 1 in this Section I is "yes," then answer the following question number 2, and then proceed to Section II below.

2. What is the total dollar amount of the payment Defendant Allstate delayed making without a reasonable basis?

ANSWER: \$ Yes - \$76,221.63

SECTION II. BAD FAITH BREACH OF INSURANCE CONTRACT

3. Has Plaintiff Yeager proven by a preponderance of the evidence that Defendant Allstate knew that its delay in payment of uninsured motorist benefits, as identified in your answer to question 2 above, was unreasonable or that Defendant Allstate recklessly disregarded the fact that its conduct or position was unreasonable? (Yes or No)

ANSWER: Yes

If your answer to the above question is "no," then your verdict is in favor of Defendant Allstate on Plaintiff Yeager's claims in this Section II, and your foreperson and all other jurors shall sign this Special Verdict Form on the lines provided, without answering the following questions. However, if your answer to the above question is "yes," proceed to question 4.

4. Has Plaintiff Yeager proven by a preponderance of the evidence that he was damaged as a result of Defendant Allstate's unreasonable conduct or position? (Yes or No)

ANSWER: Yes

If your answer to the above question is "no," then your verdict is in favor of Defendant Allstate on Plaintiff Yeager's claims in this Section II, and your foreperson and all other jurors shall sign this Special Verdict Form on the lines provided, without answering the following questions. However, if your answer to the above question is "yes," proceed to question 5. 

5. What is the total amount of Plaintiff Yeager's damages, if any, for noneconomic losses that were caused by Defendant Allstate's unreasonable conduct or position? You should answer "0" if you determine there were none.

ANSWER: \$ 337,112.00

Signatures of all jurors:

